

Seeds Act, 1988

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Amending Acts

1. Seed (First Amendment) Act, 2048 2048.10.10
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
3. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19
4. Seed (Second Amendment) Act, 2079 2079.03.24

Act No. 15 of the year 2045

An Act Made to Provide for Seed Related Provisions

Preamble: Whereas, it is desirable to increase the production of various crops by producing, processing and testing high quality seeds, making quality seeds available in a systematic manner, and maintaining the convenience and economic interest of the general public,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Seed Act, 2045".

(2) This Act shall commence in the area and from the date specified by the Government of Nepal by a notification published in the Nepal Gazette. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(2.1) "Seed" means a mature ovule consisting of an embryonic plant, food material and protective covering, or any propagating material that can be used for sowing or planting to produce a crop through sexual or vegetative reproduction. Amended by the Seed (Second Amendment) Act, 2079.(2.2) "Crop" means food grains, vegetables, fruits, pulses, oilseeds, cash crops or fodder crops, and the said word also includes ornamental crops, flowering or non-flowering. Amended by the Seed (Second Amendment) Act, 2079.(2.3) "Agricultural Operation" means the work of producing, collecting, storing and processing crops.

(2.4) "Committee" means the National Seed Committee constituted pursuant to Section 3. Amended by the Seed (First Amendment) Act, 2064.(2.5) "Laboratory" means a seed testing laboratory established pursuant to Section 9. Amended by the Seed (Second Amendment) Act, 2079.(2.6) "Notified Seed" means seed notified or registered pursuant to Section 11.

(2.7) "Container" means a box, tin can, bottle, bag, sack, bin, barrel or other similar vessel used for holding

seeds.

(2.8) "Breeder" means a person, institution or body who first breeds or selects a variety of a crop for use. Amended by the Seed (First Amendment) Act, 2064.(2.9) "Kind" means all species and sub-species of any plant known or capable of being known by one name.

Amended by the Seed (First Amendment) Act, 2064.(2.10) "Variety" means a group of plants within the lowest botanical classification, which exhibits similar genetic characteristics, is distinguishable from other groups by at least one characteristic, and whose characteristics do not change upon propagation. (2.11) "Label" means the details relating to seeds Added by the Seed (First Amendment) Act, 2064. or written Added by the Seed (First Amendment) Act, 2064. on a container so as to be visible. (2.12) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Added by the Seed (Second Amendment) Act, 2079.(2.13) "Ministry" means the Ministry looking after agricultural matters. Added by the Seed (Second Amendment) Act, 2079.(2.14) "Provincial Ministry" means the Ministry of the provincial government looking after agricultural matters. Added by the Seed (Second Amendment) Act, 2079.(2.15) "Center" means the Seed Quality Control Center. Added by the Seed (Second Amendment) Act, 2079.(2.16) "Provincial Committee" means the Provincial Seed Management Committee pursuant to Section 6A. Added by the Seed (Second Amendment) Act, 2079.(2.17) "Local Level" means a municipality or a rural municipality. Added by the Seed (Second Amendment) Act, 2079.(2.18) "Institution" means an institution established pursuant to prevailing law to carry out seed-related work, and the said word also includes a cooperative institution related to agriculture. 3. Formation of National Seed Committee: 3.1 A National Seed Committee shall be constituted to determine and implement policies relating to seeds and to provide necessary advice to the Government of Nepal on seed-related matters. Amended by the Seed (First Amendment) Act, 2064.3.2 The Committee shall consist of the following Chairperson and members:- Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.3.2.1 Secretary, Added by the Seed (First Amendment) Act, 2064. Ministry ? Chairperson 3.2.2 Director General, Department of Agriculture ? Member Added by the Seed (Second Amendment) Act, 2079.3.2.2A.

Secretary of the Provincial Ministry concerned with the subject to be discussed in the Committee meeting, from among the Secretaries of Provincial Ministries ? Member 3.2.3 Executive Director, Nepal Agricultural Research Council ? Member 3.2.4 Managing Director, Agriculture Inputs Company Limited ? Member 3.2.5 General Manager, Agricultural Development Bank ? Member Omitted by the Seed (Second Amendment) Act, 2079.3.2.5 (Repealed) Amended by the Seed (Second Amendment) Act, 2079.3.2.7 Three persons, nominated by the Ministry, including at least one woman, from among subject matter experts related to horticulture, food crops, and forage crop science ? Member Amended by the Seed (Second Amendment) Act, 2079.3.2.8 One seed specialist, at least of Associate Professor level, from the university designated by the Ministry among universities teaching agriculture and animal science ? Member 3.2.9 Two persons, including one woman, nominated by the Government of Nepal from among seed entrepreneurs ? Member 3.2.10 Two persons, including at least one woman, nominated by the Government of Nepal from among seed producers and farmers ? Member 3.2.11 Chief, Seed Quality Control Center ? Member-Secretary Amended by the Seed (First Amendment) Act, 2064.3.3 The term of office of nominated members pursuant to clauses 3.2.7, 3.2.9 and 3.2.10 shall be two years. 3.4 Notwithstanding anything contained in sub-section 3.3, the Government of Nepal may remove a nominated member pursuant to clauses Amended by the Seed (First Amendment) Act, 2064.3.2.7, 3.2.9 and 3.2.10 before the expiry of his/her term. Amended by the Seed (Second Amendment) Act, 2079.3.5 While nominating members pursuant to clauses 3.2.7, 3.2.9 and 3.2.10, it shall be done on the basis of the principle of inclusion. 3.6 The Committee may, if it deems necessary, invite any domestic or

foreign expert or advisor to participate as an observer in the Committee meeting. 4. Meeting and Decision of the Committee: 4.1 The meeting of the Committee shall be held on the date, time and place specified by the Chairperson. 4.2 If fifty percent of the total number of members of the Committee are present, the meeting shall be deemed to have a quorum. 4.3 The meeting of the Committee shall be chaired by the Chairperson, and in his/her absence, the members present at the meeting shall elect a member from among themselves to chair the meeting. 4.4 The opinion of the majority shall prevail in the Committee meeting, and in case of a tie, the Chairperson shall exercise a casting vote. 4.5 The decision of the Committee shall be certified by the Member-Secretary. 4.6 Other procedures relating to the meeting of the Committee shall be as determined by the Committee itself.

5. Functions, Duties and Powers of the Committee: 5.1 To advise the Government of Nepal on the formulation of national policy relating to seeds. Amended by the Seed (Second Amendment) Act, 2079. 5.2 To maintain coordination between the provincial government, local level and the private sector in seed production, processing, storage, packaging and distribution activities, and to bring uniformity in seed quality control and standard determination. 5.3 To encourage the private sector to invest in the seed industry. Amended by the Seed (First Amendment) Act, 2064. 5.4 To regularly monitor and control the quality of seeds produced within Nepal or imported from abroad for sale and distribution. 5.5 To approve, release and register new varieties of seeds as prescribed. 5.6 To conduct Distinctness, Uniformity and Stability (DUS) testing of new seed varieties and grant proprietary rights to the breeder as prescribed. 5.7 To determine seed quality. 5.8 To approve seed quality standards determined by domestic or foreign bodies as necessary. Added by the Seed (First Amendment) Act, 2064. 5.8A To advise the Government of Nepal on seed related service fees, Added by the Seed (First Amendment) Act, 2064. 5.8B To recommend to the Government of Nepal or the Provincial Government regarding the notification or registration of kinds and Amended by the Seed (Second Amendment) Act, 2079. varieties of crops, Added by the Seed (Second Amendment) Act, 2079. 5.8C To revoke the license of a laboratory if it is found to be operating without renewal of the license, Added by the Seed (First Amendment) Act, 2064. 5.8D To conduct examinations for granting permission to work as a Crop Inspector, Seed Sampler and Seed Analyst. Added by the Seed (Second Amendment) Act, 2079. 5.8E To send written communications of the Committee's decisions to the Provincial Ministry, Provincial Seed Committee, Seed Testing Laboratory and other related bodies, Added by the Seed (Second Amendment) Act, 2079. 5.8F To provide necessary advice if sought by the Provincial Seed Committee or Local Seed Management Committee on seed matters, Added by the Seed (Second Amendment) Act, 2079. 5.8G To identify traditionally used and endangered varieties of seeds at the national and provincial level and carry out necessary technical and policy work for their conservation by establishing a gene bank at the national level and community seed banks at the provincial level, 5.9 To carry out other necessary work related to seeds. 6.

May Constitute Sub-Committees: 6.1 The Committee may constitute various sub-committees as required for the purpose of smoothly conducting the production, Amended by the Seed (Second Amendment) Act, 2079. processing, storage and sale and distribution of seeds and making quality seeds available. 6.2 The functions, duties and powers of the sub-committees and their meeting procedures shall be as prescribed. Added by the Seed (Second Amendment) Act, 2079. 6A. Formation of Provincial Seed Committee: 6A.1 The provincial government may form a Provincial Seed Committee to determine and implement policies relating to seeds in the province and to provide necessary advice on seed matters. 6A.2 The formation, functions, duties and powers of the Committee formed pursuant to sub-section 6A.1 shall be in accordance with provincial law. Added by the Seed (Second Amendment) Act, 2079. 6B. May Form Local Seed Management Committee: A Local Seed Management Committee may be formed in accordance with provisions in local law for the production, conservation and promotion of seeds produced within its area at the local level, and to advise

farmers in that regard. Amended by the Seed (First Amendment) Act, 2064.7. Establishment of Seed Quality Control Center: The Government of Nepal may, by a notification published in the Nepal Gazette, establish a Seed Quality Control Center to carry out seed quality control functions and to act as the secretariat of the Committee. Amended by the Seed (First Amendment) Act, 2064.8. Functions, Duties and Powers of Seed Quality Control Center: 8.1 Added by the Seed (First Amendment) Act, 2064. The functions, duties and powers of the Seed Quality Control Center shall be as follows:- 8.1.1 To prepare necessary infrastructure relating to seed Added by the Seed (First Amendment) Act, 2064. quality control and certification and submit it to the Committee. 8.1.2 To certify seeds according to the methods, standards and criteria approved by the Committee and issue certificates as required. 8.1.3 To monitor whether a person or institution licensed pursuant to sub-section 9.4 is working in accordance with the conditions. 8.2 Amended by the Seed (First Amendment) Act, 2064. Other functions, duties and powers of the Seed Quality Control Center and the procedures to be adopted by such Amended by the Seed (First Amendment) Act, 2064. Center while conducting seed quality control and certification shall be as prescribed. Amended by the Seed (Second Amendment) Act, 2079.9. Establishment of Seed Testing Laboratory: 9.1 The Government of Nepal shall establish a Seed Testing Laboratory for testing seeds and other related functions. 9.2 The Provincial Ministry or the local level or any person or private association/institution may establish a Seed Testing Laboratory in accordance with the relevant provincial law, subject to the standards prescribed by the Ministry, for testing seeds and other related functions.

9.3 Technical supervision and control of laboratories established pursuant to sub-sections 9.1 and 9.2 shall be by the Committee. 10. Functions, Duties and Powers of Laboratory: The functions, duties and powers of a laboratory shall be as prescribed. Amended by the Seed (Second Amendment) Act, 2079.10A. Renewal: 10A.1 A laboratory established pursuant to Section 9 shall, each year, have a technical audit conducted by the Committee and renew its license. 10A.2 If the license is not renewed each year pursuant to sub-section 10A.1, or if the technical audit finds that the prescribed standards are not met, the license of such laboratory shall be automatically revoked. Amended by the Seed (Second Amendment) Act, 2079.11. Power to Notify or Register Kinds or Varieties of Seeds: 11.1 If the Ministry deems it necessary to regulate and control the quality of any kind or variety of seed used for agricultural operations, it may, after consulting the Committee, by a notification published in the Nepal Gazette, designate kinds or varieties of seeds released in Nepal as Notified Seeds. 11.2 If the Ministry deems it necessary to regulate and control the quality of any kind or variety of imported or local variety seeds used for agricultural operations, it may, pursuant to a decision of the Committee, register and designate such kinds or varieties of seeds as Registered Seeds. Notice of such registration of seeds shall be published through the website of the Ministry and the Committee and other appropriate means. 11.3 If the Provincial Ministry wishes to notify seeds of kinds or varieties released in Nepal suitable for its area, or to register local variety seeds other than imported ones, it may, upon completing the prescribed standards and procedures and on the recommendation of the Provincial Committee, by a notification published in the Provincial Gazette, notify or register such seeds. While notifying or registering seeds in this manner, the Provincial Ministry shall consult with the Committee. 11.4 While designating Notified Seeds or Registered Seeds pursuant to sub-section 11.1, 11.2 or 11.3, the Ministry or Provincial Ministry shall also specify the kind or variety of seed suitable for different regions. 11.5 If a seed registered pursuant to this Section is found unsuitable for cultivation, the body that registered it shall publish a public notice and remove it from the list of registered seeds. If the Provincial Ministry removes a seed registered pursuant to sub-section 11.3 from such list, it shall inform the Committee thereof.

11.6 The procedure for notifying or registering a seed variety shall be as prescribed, and while prescribing such procedure, the procedure for notifying seed varieties and for registering imported or local variety seeds

may be prescribed differently according to the nature of the crops. Added by the Seed (First Amendment) Act, 2064.11A. License Required: 11A.1 If any person or institution wishes to carry out business relating to the sale and distribution of seeds, they must submit an application along with the prescribed fee to the prescribed authority and obtain a license in the prescribed format. 11A.2 If anyone is found selling or distributing seeds without obtaining a license pursuant to sub-section 11A.1, such seeds shall be confiscated by the Crop Inspector. Added by the Seed (Second Amendment) Act, 2079.11A.3 A license obtained pursuant to sub-section 11A.1 shall be renewed each year by submitting an application to the prescribed authority and paying the prescribed fee. The procedure for renewal and revocation of the license shall be as prescribed. Added by the Seed (Second Amendment) Act, 2079.11B. Sale and Distribution Prohibited: 11B.1 No person shall sell or cause to be sold seeds that are not notified or registered under this Act. 11B.2 Notwithstanding anything contained in sub-section 11B.1, it shall not prevent the sale and distribution of seeds not notified or registered under this Act for agricultural research purposes. Added by the Seed (Second Amendment) Act, 2079.11C. Confiscation: 11C.1 If anyone conducts variety testing, quality testing, import, export, production, processing, transportation, storage and sale and distribution of any seed in contravention of this Act, such seeds may be confiscated by the Seed Inspector. 11C.2 Other procedures relating to confiscation of seeds shall be as prescribed. Added by the Seed (Second Amendment) Act, 2079.11D. Provision Regarding Compensation: 11D.1 If a farmer suffers economic loss or damage due to the quality of seeds sold and distributed by someone or due to false information, the concerned party shall compensate the farmer for the actual loss or damage based on the assessment and recommendation of the Assessment Committee.

11D.2 For the assessment of loss or damage pursuant to sub-section 11D.1, there shall be an Assessment Committee in each district as follows:-

- (a) Officer designated by the Chief of the Center ? Coordinator
- (b) Chief of the district-level office looking after agricultural matters ? Member
- (c) Agricultural expert designated by the Assessment Committee ? Member
- (d) Scientist from Nepal Agricultural Research Council ? Member
- (e) Chief Administrative Officer of the concerned Rural Municipality/Municipality ? Member

11D.3 While assessing economic loss or damage, the Assessment Committee pursuant to sub-section 11D.2 shall assess based on land productivity, recommended seed quality, expenses incurred for agricultural operations, reduction in production, and other grounds deemed necessary by the Committee, and recommend the amount of compensation pursuant to sub-section 11D.1. Amended by the Seed (Second Amendment) Act, 2079.12. Prescribing Minimum Quality Standards for Seeds:

12.1 The Ministry may, by a notification published in the Nepal Gazette, after consulting the Committee, prescribe the minimum quality standard for any Notified Seed. 12.2 The Ministry may, by publishing a notification on its website and through other appropriate means, after consulting the Committee, prescribe the minimum quality standard for any seed registered pursuant to sub-section 11.2 of Section 11. 12.3 The Provincial Ministry may, by a notification published in the Provincial Gazette, after consulting the Provincial Seed Committee, prescribe the minimum quality standard for any seed notified or registered pursuant to sub-section 11.3 of Section 11. Amended by the Seed (First Amendment) Act, 2064.13. Sale and Distribution of Notified Seeds:

13.1 A person or institution selling and distributing Notified Seeds must mention the following details on the container of the seed they sell and distribute:-

13.1.1 Kind and variety of seed,

13.1.2 Minimum quality standard prescribed pursuant to Section 12,

13.1.3 Details of chemical treatment, if applied,

13.1.4 Other particulars as prescribed. 13.2 Notwithstanding anything contained in sub-section 13.1, it shall not be permissible to sell or cause to be sold Notified Seeds of a kind and variety determined by the breeder as suitable only for a specific region, in any other region except the region so determined. 14. Repealed by the Seed (First Amendment) Act, 2064.×

15. Approval Required for Export or Import of Notified Seeds:

15.1 A person or institution wishing to export or import Notified Seeds of any kind or variety shall submit an application for approval to the prescribed authority along with the prescribed fee and details. 15.2 Upon receipt of the application pursuant to sub-section 15.1, the prescribed authority may grant approval.

Amended by the Seed (Second Amendment) Act, 2079.15.3 After obtaining approval pursuant to sub-section 15.2, the concerned person or institution may export or import the Notified Seeds. Amended by the Seed (Second Amendment) Act, 2079.15A. May Prohibit Export or Import: 15A.1 If anyone intends to export or import seeds of a specific variety that may adversely affect humans, animals, birds, plants, environment, culture or livelihood, or Genetically Modified Organisms (GMOs), or Living Modified Organisms (LMOs), or Terminator Seeds, a risk analysis must be conducted as prescribed before such export or import. 15A.2 The Government of Nepal may, by a notification published in the Nepal Gazette, prohibit the export or import of seeds deemed unsuitable for export or import based on the risk analysis conducted pursuant to sub-section 15A.1. 15A.3 Notwithstanding anything contained elsewhere in this Section, this Act shall not be deemed to prevent the study or research of seeds of the nature mentioned in sub-section 15A.1 with the permission of the Ministry. 15A.4 While requesting permission pursuant to sub-section 15A.3, a brief introductory description of such seeds must be included. Added by the Seed (Second Amendment) Act, 2079.15B. Permission Required for Basic or Source Seed Production: 15B.1 If any person or institution wishes to produce basic or source seed, they must submit an application to the Committee or the Provincial Committee along with the prescribed fee for permission. 15B.2 Upon receipt of an application pursuant to sub-section 15B.1, the Committee may, after necessary inquiry, grant permission. 15B.3 Other provisions relating to granting permission for basic or source seed production shall be as prescribed. 15B.4 Notwithstanding anything contained in this Section, permission shall not be required for producing basic or source seed for household purposes. Added by the Seed (Second Amendment) Act, 2079.15C. Permission Required for Hybrid Seed Production: 15C.1 If any person or institution wishes to produce hybrid seed, they must submit an application to the Committee or the Provincial Committee along with the prescribed fee for permission. 15C.2 Upon receipt of an application pursuant to sub-section 15C.1, the Committee may, after necessary inquiry, grant permission for the production of such seed. 15C.3 Other provisions relating to granting permission for hybrid seed production shall be as prescribed. 15C.4 Notwithstanding anything contained in this Section, permission shall not be required for producing hybrid seed for household purposes. Added by the Seed (Second Amendment) Act, 2079.15D. Permission Required for Variety Development and Promotion: 15D.1 If any person or institution wishes to develop and promote a variety of any seed, they must submit an application to the Committee along with the prescribed fee for permission.

15D.2 Upon receipt of an application pursuant to sub-section 15D.1, the Committee may, after necessary inquiry, grant permission for the development and promotion of a variety of any seed. 15D.3 Other provisions relating to variety development and promotion of seeds shall be as prescribed. 15D.4 Notwithstanding

anything contained in this Section, permission shall not be required for variety development and promotion for household purposes. Added by the Seed (Second Amendment) Act, 2079.15E. To be in Accordance with Provincial Law: In relation to basic or source seed production, hybrid seed production and variety development and promotion pursuant to Sections 15B, 15C and 15D, the province may, by making a law consistent with the quality and standards prescribed by the Committee, grant permission to a person or institution. Amended by the Seed (First Amendment) Act, 2064.16. Provisions Relating to Crop Inspector, Seed Sampler and Seed Analyst: Amended by the Seed (Second Amendment) Act, 2079.16.1 The Government of Nepal or the Provincial Government may appoint or designate Seed Inspectors and Seed Analysts from among Nepali citizens possessing the following qualifications:- (a) Having passed at least a Bachelor's degree in Agriculture from a recognized educational institution, or having passed a Certificate level in Agriculture and having at least ten years of experience in seed production, (b) Having passed the examination conducted by the Committee, (c) If a civil servant meeting the qualification under clause (a), having obtained approval from the office where he/she is serving. 16.2 Until Crop Inspectors, Seed Samplers and Seed Analysts are appointed pursuant to sub-section 16.1, the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Government of Nepal or the Provincial Government may designate officers under Amended by the Seed (Second Amendment) Act, 2079. its jurisdiction or at the local level who possess the required qualifications to work as Crop Inspectors, Seed Samplers or Seed Analysts. 16.3 Except as provided in sub-sections 16.1 and 16.2, no person shall conduct crop inspection, collect seed samples or analyze seeds without obtaining a license under this Act. 16.4 A person possessing the prescribed qualifications wishing to obtain a license pursuant to sub-section 16.3 must pass the examination conducted by the Committee.

16.5 A person who has passed the examination pursuant to sub-section 16.4 shall submit an application to the Committee in the prescribed format along with the prescribed fee to obtain a license to operate a business as a Crop Inspector, Seed Sampler or Seed Analyst. 16.6 Upon receipt of an application pursuant to sub-section 16.5, the Committee shall, upon payment of the prescribed fee, issue a license on the prescribed conditions and format. The license issued in this manner shall remain valid for two years. 16.7 A license issued pursuant to sub-section 16.6 shall be renewed as prescribed. 16.8 If the license is not renewed pursuant to sub-section 16.7, such license shall be automatically cancelled. 16.9 Other provisions relating to the examination pursuant to sub-section 16.4 shall be as prescribed. Amended by the Seed (First Amendment) Act, 2064.17. Functions, Duties and Powers of Crop Inspector, Seed Sampler and Seed Analyst: The functions, duties and powers of the Crop Inspector, Seed Sampler and Seed Analyst shall be as prescribed. Added by the Seed (First Amendment) Act, 2064.17A. May Levy Service Fee: 17A.1 The Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Government of Nepal or the Provincial Government may, by publishing a notification in the Nepal Gazette, levy a prescribed service fee for any service provided under this Act. 17A.2 Any person or institution providing any service under this Act may levy a service fee as approved by the Committee. 18. Recognition by the Government of Nepal: The Government of Nepal may, after consulting the Committee, by a notification published in the Nepal Gazette, recognize any domestic or foreign or international institution testing or certifying seeds Added by the Seed (First Amendment) Act, 2064. or testing varieties for the purposes of this Act. Amended by the Seed (Second Amendment) Act, 2079.18A. Farmers' Rights: (1) Farmers shall have the right to ownership, variety selection, conservation and distribution of local seeds or varieties or agricultural crop seeds traditionally used and practiced in Nepal. (2) Any farmer group in Nepal may register under prevailing law local seeds or varieties or agricultural crop seeds traditionally used and practiced collectively by that group, in the name of such farmer group with collective ownership. Added by the Seed (Second

Amendment) Act, 2079.19.

Penalties: 19.1 If anyone operates a laboratory without obtaining a license pursuant to Section 9, they shall be liable to a fine of Amended by the Seed (Second Amendment) Act, 2079. fifty thousand to one hundred thousand rupees or imprisonment for one month to three months or both. 19.2 If anyone sells or causes to be sold seeds in contravention of Sections 11A and 11B, they shall be liable to a fine of Amended by the Seed (Second Amendment) Act, 2079. fifty thousand to one hundred thousand rupees or imprisonment for one month to three months or both. 19.3 If anyone sells or causes to be sold seeds without disclosing the details pursuant to Section 13, they shall be liable to a fine of Amended by the Seed (Second Amendment) Act, 2079. ten thousand to fifty thousand rupees or imprisonment for one month to three months or both. 19.4 If anyone does any act in contravention of sub-section 16.3, they shall be liable to a fine of Amended by the Seed (Second Amendment) Act, 2079. twenty-five thousand rupees or imprisonment for one month to three months or both. 19.5 Except as provided in sub-sections 19.1, 19.2, 19.3 and 19.4, any person or institution doing or causing to be done any act contrary to this Act or the rules made under this Act shall be liable to a fine of Amended by the Seed (Second Amendment) Act, 2079. fifteen thousand to twenty-five thousand rupees or imprisonment for one month to two months or both. Added by the Seed (Second Amendment) Act, 2079.19.6 If anyone creates any obstruction or threatens the Seed Inspector or Seed Analyst during the implementation of this Act and the rules made under this Act, the Seed Inspector or Seed Analyst appointed pursuant to sub-section 16.1 of Section 16 or designated pursuant to sub-section 16.2 shall impose a fine of up to twenty-five thousand rupees for each instance. 20. Government to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 21. Investigation and Filing of Cases: 21.1 Investigation of offenses punishable under this Act shall be conducted by the Seed Inspector or Seed Analyst appointed pursuant to sub-section 16.1 of Section 16 or designated pursuant to sub-section 16.2, and after completion of such investigation, the case shall be filed before the adjudicating officer. 21.2 While investigating and filing a case pursuant to sub-section 21.1, the Seed Inspector may seek the opinion of the government attorney. Amended by the Seed (Second Amendment) Act, 2079. Upon seeking the opinion of the government attorney, the case shall be conducted in accordance with such opinion.

Added by the Seed (Second Amendment) Act, 2079.21A. Proceedings under Prevailing Law Not Barred: If an act punishable under this Act is also punishable under any other prevailing law, this Act shall not prevent proceedings under that other law. 22. Jurisdiction to Hear Cases: 22.1 The jurisdiction to hear cases under this Act shall vest in the prescribed officer. 22.2 While conducting proceedings and making decisions on cases pursuant to sub-section 22.1, the prescribed officer shall adopt the procedure under the Special Court Act, 2059. Added by the Seed (Second Amendment) Act, 2079.22.3 A party dissatisfied with the decision of the officer hearing the case pursuant to sub-section 22.1 may appeal to the concerned District Court within thirty-five days from the date of the decision. 23. Protection of Acts Done in Good Faith: Amended by the Seed (Second Amendment) Act, 2079.A Seed Inspector or Seed Analyst or any employee authorized to work under this Act shall not be personally liable for any act done in good faith in the course of performing their duties under this Act. Provided that, if any act is done with the intention of causing unnecessary suffering, harassment or trouble to anyone, the concerned person shall be liable for it. 24. Power to Make Rules: The Government of Nepal may make necessary rules for implementing the objectives of this Act.